

**IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A.D. 2021**

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HER HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Abdulah Sanoh of the City of Paynesville,
Montserrado County, LiberiaAppellant

Versus

Soko Kamara also of the City of Paynesville,
Montserrado County, Liberia.....Appellee

GROWING OUT OF THE CASE:

Soko Kamara also of the City of Paynesville,
Montserrado County, Liberia.....Plaintiff

Versus

Abdulah Sanoh of the City of Paynesville,
Montserrado County, Liberia.....Defendant

APPEAL

ACTION OF EJECTMENT

Heard: November 18, 2020

Decided: February 17, 2022

MADAM JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

The Supreme Court in countless Opinions has appealed, cautioned, and berated lawyers regarding the form and manner of the pleadings and briefs filed before the courts within the bailiwick of the Republic of Liberia. However, from all indications, these actions by this Court seem time and time again to fall upon deaf ears as demonstrated in the pleadings and briefs filed by lawyers, which show poor and substandard English grammar and spelling. Also, we mention the negligent taxing and transcribing of the records to this Court. These acts are unacceptable at any level for professionals who have graduated from high school, college and law school. The lawyers from the firms representing the present parties should take heed and govern themselves henceforth on the quality of the papers they file before all courts, to include the Supreme Court, as we are prepared to take stringent disciplinary action in pursuit of our authority to supervise the practice of law within this jurisdiction.

The transcribed records show that on October 29, 2015, Soko Kamara, the appellee herein, plaintiff in the trial court, filed a five (5) count complaint, alleging that he is the legitimate owner of a parcel of land containing two (2) lots, purchased from the Intestate Estate of Mohammed Ibrahim Issa by and thru its administrators, Nageeb M. Ibrahim Issa, Omu Ibrahim Issa, and Ali Ibrahim Issa; that the appellant entered upon the said parcel of land without his consent, and despite all efforts to peacefully settle this matter with the appellant, the latter continues to

occupy his property and commenced the construction of a fence around same. The appellee prayed the trial court to order the ejectment, eviction, and ousting of the appellant from his property, and to award him the amount of Two Hundred Fifty Thousand United States Dollars (US\$250,000.00) for wrongful withholding of his property.

On November 13, 2015, Abdulah Sanoh, the defendant, now the appellant, filed a seven (7) count answer asserting therein that the late Mohamed Ibrahim Issa could not legally own real property in Liberia by virtue of his Egyptian citizenship, and as such, the administrators of his intestate estate could not convey title of any real property allegedly owned by Mohammed Ibrahim Issa to anyone, given that the Constitution of Liberia disqualifies non-Liberians from owning real property in Liberia; that even if the late Mohammed Issa was qualified to own real property in Liberia, the failure of his administrators to obtain a decree of sale from the monthly and probate court prior to the alleged sale of the subject property to the appellee, a mandatory requirement of the law, nullified said sale and transfer of title; that further assuming the late Mohammed Ibrahim Issa had acquired title to the subject property, the appellee's failure to attach any title instrument to substantiate said claim rendered same legally defective.

Furthermore, the appellant alluded to a 2014 action of ejectment filed by the Intestate Estate of Mohammed Issa by its administrators against him, the appellant, for the same property, subject of these proceedings, which was allegedly sold to the appellee in March, 2004; that by virtue of said action instituted by the intestate estate of Mohammed Issa, by and thru its administrators, appellee's alleged grantors, the title deed proffered by the appellee is a product of fraud; that said title was conveyed to the appellee sometime between August and September, 2015, but same was back-dated to March, 2004 to give the false impression that the appellee had acquired the property in 2004; that the appellant is not encroaching upon the appellee's property as alleged, but owns a parcel of land containing 1.1 lots in fee simple, by purchase from the administrators of the Intestate Estate of Thomas R. Barbour on January 19, 2012, upon authorization from the Monthly and Probate Court, Montserrado County through a decree of sale; that Thomas R. Barbour purchased and obtained a Bounty Deed to the said parcel of land from the Republic of Liberia on November 23, 1869, and predicated on said purchase, his predecessors have openly and notoriously occupied said parcel of land for over a period of fifty (50) years; that in view of this adverse possession, the appellee's action of ejectment is time barred. The appellant attached to his answer, a copy of the pleading on the 2014 action of ejection filed by the administrators of the Intestate Estate of M. Ibrahim Issa against the appellant, his title documents, and his grantor's letters of administration and decree of sale.

In his November 23, 2015 reply, the appellee stated, *inter alia*, that the late Mohammed Ibrahim Issa was a naturalized citizen of Liberia, and therefore he could rightfully and legally own real property in Liberia, and proffered the certificate of naturalization as proof thereof.

The records show that on December 7, 2015, the appellant withdrew his answer with reservation to file an amended answer, and proceeded on the same date to file

his amended answer. In his amended answer, the appellant alleged that the signatures of the late Judge John L. Greaves and Mr. S. Peter Doe-Kpar, former Judge and Clerk of the Monthly and Probate Court, Montserrado County, respectively, appearing on the decree of sale, dated November 30, 2003, proffered by the appellee were fraudulent, to the effect that no property could have been legally conveyed to the appellee. The appellant maintained his allegation that Mr. Mohammed Ibrahim Issa was an Egyptian national disqualified by the Constitution of Liberia from owning real property in Liberia; that the appellee failed to exhibit a deed as evidence of his title to the disputed property; that the appellee's administrators deed and decree of sale are fraudulent, as the Center for National Documentation and Records Agency (CNDRA) issued two (2) letters indicating non-discovery of the said deed and decree of sale; that the administrators of the Mohammed Issa Intestate Estate could not have conveyed the property to the appellee due to the fact that during the pendency of the 2014 ejectment action by the said estate against the appellant, the present appellee allegedly told several persons that the property was never conveyed to him and that subsequently, in the presence of several witnesses, the administrators of the Intestate Estate of Mohammed Issa requested that the appellant purchase the property from them; that he was at first reluctant, but later agreed to an initial purchase price of Seventy-Five Thousand United States Dollars (US\$75,000.00); that receipts show the administrators received over Twenty Thousand United States Dollars (US\$20,000.00) from him; that the said administrators obtained extended letters of administration and court's decree of sale dated July 30 and August 4, 2015, respectively, for the said property from the Monthly and Probate Court, thus leaving only the preparation of a deed to convey the property to the appellant; that unfortunately, the appellant traveled to Mecca for the annual pilgrimage and it was during his absence that the appellee and the administrators of the Intestate Estate of Mohammed Ibrahim Issa executed and back-dated the alleged fraudulent deed in favor of the appellee.

In his amended reply, the appellee maintained all of the assertions contained in his original reply.

While the matter remained pending before the trial court, the same took a humorous twist when a motion to intervene was filed on behalf of the administrators of the Intestate Estate of Thomas R. Barbour by the Weah & Associates Law firm. However, by a bill of information, the said administrators denied ever retaining the said Law Firm to file the motion to intervene. The Weah & Associates then proceeded to, and did file a withdrawal of the motion to intervene, which was granted by the trial court.

A trial by jury was conducted and a verdict returned in favour of the appellee. The appellant then filed a motion for new trial which was denied, thus the present appeal via an eleven (11) count bill of exceptions. We have reviewed the bill of exceptions and note that counts 1 through 3 are merely procedural and bear no relevance to the issue of establishing the appellant's title, and not affecting the substantive right of the appellant with regards to the action of ejectment or the appeal, hence we will not pass on same. Our decision here is in accord with

plethora of this Court's Opinion wherein it held that it is not bound to pass on every issue, except those germane to the disposition of the matter at hand. *CBL v. TRADEVCO*, Supreme Court Opinion October Term 2012; *Knuckles v. TRADEVCO*, 40 LLR 49, 53 (2000); *Vargas v. Morns*, 39LLR 18, 24 (1998)

In counts 4 through 8, the appellant alleged that the jury's verdict and the trial judge's final judgment affirming said verdict was against the weight of the evidence adduced by the appellee; that he did prove and establish, by preponderance of the evidence, his title to the 1.1 lots of land purchased from the Intestate Estate of Thomas Barbour on January 19, 2012; that the deed to said property was probated and registered on January 30, 2012; that although the appellee alleged that he acquired the property on March 22, 2004, he probated same on July 12, 2005, fifteen months after its execution, contrary to the statute which requires four (4) months for probate after execution of a deed.

We observe from our review of the appellant's bill of exceptions that his main contention is that the jury's verdict was against the weight of the evidence adduced by the appellee, and as such, it was erroneous for the trial judge to have affirmed said verdict, or to have denied him a new trial as required by law. Noting that the law mandates a new trial only when the verdict is contrary to the weight of the evidence or where it would serve the interest of justice, *Civil Procedure Law*, Rev. Code 1: 26.4, we shall take recourse to the certified records to review the species of evidence proffered by both the appellee and the appellant to make a determination of this appeal.

The Supreme Court has opined that to prevail in an ejectment action the burden of proof rests exclusively on the plaintiff, and not on the weakness of the defendant's deed; and that in such situations where there are doubts and uncertainty, the plaintiff, although having an older deed, cannot enjoy the benefit of the principle that the holder of the older deed has a superior title. *Suah-Belleh v. Oniyama*, Supreme Court Opinion, October Term, 2014. Further, the Supreme Court has espoused that "the plaintiff in an ejectment action must recover unaided by any defect or mistake in the defendant's title; that a weakness in the defendant's title will not of itself enable the plaintiff to recover the disputed property. As a matter of fact, proof of plaintiff's title must be clear, convincing and beyond question." *Caine et al., v. Fahnbulleh*, 31LLR 235 (1983); *Cassell v. Karmie* 31LLR (1983) *Kollie v. Kpan* 31LLR 600 (1983); *Nyumah v. Kemokai* 34LLR 226 (1986); *Kollie v. Jarbo*, Supreme Court Opinion, October Term A.D. 2013.

Beginning with the appellee, the records show that three witnesses in persons of Abraham Barbour, Omar Issa, and the appellee himself, testified in his behalf. We note that the appellee's first witness, Abraham Barbour is also one of the administrators of the Intestate Estate of Thomas Barbour and the appellant's grantor by virtue of said administrator status.

The first witness, Abraham Barbour, testified that he and his brother as administrators of the Intestate Estate of Thomas R. Barbour, sold 1.1 lots of land to the appellant; that after the appellant commenced the construction of a fence around the said parcel of land, he was confronted by the Issa family who informed

him that they were the legitimate owners of the said land which they claimed was part and parcel of their 2 lots of land; that the Issa family instituted an ejectment action against the appellant to have him evicted from the property; that although the appellant informed him (Abraham Barbour) about the claim by the Issa family, the appellant subsequently consented to an offer from the Issa Estate administrators for the purchase of the two (2) lots of land.

The appellee's second witness, Omar Issa, testified that he and his brothers as administrators of the Intestate Estate of Mohammed Ibrahim Issa sold two (2) lots of land to the appellee in March, 2004; that the said parcel of land was acquired by his father from David Summerville who had acquired said land from Thomas Barbour, whose intestate estate is the direct grantor of the appellant; that sometime in September, 2014, the intestate estate of M. Ibrahim Issa represented by its administrators, one of whom is witness Omar Issa, instituted an action of ejectment against the appellant; that the ejectment action was subsequently withdrawn predicated on the intervention of the some prominent members of the Muslim community, and also based upon agreement reached with the appellant for him to purchase the property from the Issa family; that the appellee was present in the meeting wherein it was agreed that the appellant would purchase the property from the Issa family at the price of Seventy Five Thousand United States Dollars (US\$75,000.00); that the subject property was surveyed in the presence of the appellant, the appellee, and other interested parties; that the appellant paid sundry amounts towards the purchase price amounting to Twenty Three Thousand Three Hundred United States United States Dollars (US\$23,300.00), but failed to make further payments.

The appellee offered the final testimony pro se; that he purchased the property from the administrators of the intestate estate of M. Ibrahim Issa in March, 2004; that following the purchase of the property, he noticed that the appellant had encroached on a portion of said property based upon which he instituted the ejectment action.

On cross examination, the appellee testified confirming the appellant's averment, that following the withdrawal of the ejectment action by the administrators of the Mohammed Ibrahim Issa Intestate Estate, he was invited to a meeting convened by some prominent members of the Muslim community to include Mr. Luseni Kamara for the purpose of resolving the dispute between the appellant and the administrators of the Intestate Estate of Mohammed Ibrahim Issa; that in one of the meetings, the subject property was offered for sale to the appellant by the administrators of the Intestate Estate of Mohammed Ibrahim Issa for the amount of Seventy Five Thousand United States Dollars (US\$75,000.00), but that the appellant failed to make payment of the full amount.

On the other hand, the appellant presented six (6) witnesses, including himself, and a subpoenaed witness from the Center for National Documents & Records (CNDRA).

The first witness, Josephine Freeman, testified that her husband, Alex Freeman, leased the subject property from the administrators of the Intestate Estate of

Mohammed Ibrahim Issa in 2008 for a period of Twenty Five (25) years; that sometime in 2014, she was informed by the Omar Issa, one of the administrators of the Issa estate that they had agreed to sell the property to the appellant; that she was paid Four Thousand United States Dollars (US\$4,000.00) as consideration for the cancellation of the lease her husband had entered with the Issa estate; that during the survey of the subject property in favor of the appellant, the appellee, Omar Issa, and two other persons were present.

The appellant testified *pro se* recanting the same averments contained in his amended answer. Hence, we will not burden this Opinion by reciting same.

The appellant's third and fourth witnesses, in persons of Mr. Luseni Kamara, Sr. and Mr. Amadu Sheriff, respectively, give similar testimonies, confirming the testimony of the appellant and that the appellee was aware of all the negotiations between the appellant and the Issa Administrators and consented thereto because he was only interested in recovering a loan he had extended to the administrators of the Issa Estate.

The appellant's fifth witness, Hitler T. Barbour, testified that he and his brother, in their capacity as administrators of the Intestate Estate of Thomas Barbour, sold 1.1 lots of land to the appellant after obtaining court's decree of sale from the Monthly and Probate Court for Montserrado County; that the said 1.1 lot of land was surveyed and an administrator's deed duly executed in favor of the appellant.

The appellant's sixth witness, Madam Josephine Ledlum Benson, who was subpoenaed to testify to two (2) letters of non-discovery issued by the Center for National Documents & Records Agency (CNDRA), stated that the letters were issued to the effect that following a diligent search of the CNDRA's records, the appellee's deed was not found and that the accompanying court's decree of sale was also not found, even though the volume and page number of the said court's decree of sale was found, but same represented a different document.

Having examined the oral and documentary species of evidence of both the appellee and appellant, we conclude and hold that the evidence indicates the following:

- a) That the Intestate Estate of M. Ibrahim Issa Estate, through its administrators exercised control over the property in dispute without any objection or interference by the appellee prior to the filing of his ejectment action against the appellant. This is evidenced by the lease the estate entered with Mr. Alex Freeman in 2008 for the disputed property for a period of twenty five (25) years; the subsequent sale of the subject property by the Issa Estate to the appellee, that is, the two (2) lots of land claimed by the appellee; the commencement of sale of the same 2 lots to the appellant by the Issa Estate by receipts of payment thereof, followed by a survey of said property, again without objections from the appellee. It is the law that the effect of failure to deny is deemed an admission, and this Court has held that "he who should speak but remains silent is deemed to have assented". *Constance et al. v. Ajavon et al.*, 40 LLR 295, 304 (2000).

- b) That the deed proffered by the appellee to prove his title fell short of the requirement of the law relative to the probation and registration of title instruments. According to the records, the appellee allegedly purchased the subject property on March 22, 2004, but probated his deed on July 12, 2005. This late registration of the appellee's deed violates the law and Opinions of the Supreme Court which states "where a party fails to probate and register a transfer deed within the period of four months the deed shall be void as against any party holding a subsequent instrument affecting or relating to such property," as in the instant appeal. *Property Law*, Rev Code 29:6; *Cooper v. Davis et al.*, 27LLR 310 (1978); *Wilson et al., v. Wilson et al.*, 37LLR 420 (1994); *Suah-Belleh v. Oniyama*, Supreme Court Opinion, March Term A.D. 2014.

We reiterate that the plaintiff in an ejectment action has the burden to prove his title by a preponderance of the evidence, and not to rely on the deficiency of the defendant's title. The documentary and testimonial evidence produced by the appellee was insufficient to have warranted a verdict in his favor. The Supreme Court has held "that where a trial is regular and proof is clear to support the verdict reached by the jury the said verdict will be upheld by the Supreme Court." *Kamara v. Thorpe and Gindi*, 30LLR 841 (1982); *Konnah and Tiawan v. Carver*, 36LLR 319 (1989). Given this principle of law, the contrary holds true that where the verdict is unsupported by the weight of the evidence adduced or the evidence is insufficient to support the verdict the Supreme Court will set it aside for want of sufficiency.

WHEREFORE AND IN VIEW OF THE FOREGOING, the appellant's appeal is hereby granted. The evidence adduced by the appellee being insufficient to have warranted a verdict in his favor, said verdict is set aside and the final judgment of the trial court is reversed. The Clerk of this Court is ordered to send a mandate to the trial court commanding the judge presiding therein to resume jurisdiction over this case and give effect to the Judgment of this Opinion. Costs are ruled against the appellee. And it is so ordered.

When this case was called for hearing Counsellors Yahaya B. Kromah, Jonathan T. Massaquoi, and Emmanuel B. James appeared for the appellant. Counsellor J. Johnny Momoh of the J. Johnny Momoh and Associates Legal Chambers, Inc. appeared for the appellee.